

FEDERAL MARITIME COMMISSION

Office of Administrative Law Judges

COLOR BRANDS, LLC, *Complainant*

v.

AAF LOGISTICS, INC., *Respondent*.

DOCKET NO. 22-18

Served: February 26, 2024

ORDER OF: Erin M. WIRTH, *Chief Administrative Law Judge*.

ORDER ACCEPTING FILING AND REVISING REMAND SCHEDULING ORDER

On January 22, 2024, a remand scheduling order was issued, requiring the parties to file briefs addressing the two issues remanded by the Commission.

This morning, the Office of Administrative Law Judges received an email from Complainant requesting an extension of time. This email was not in the form of a written motion and does not indicate whether Respondent was consulted or received a copy of the request. The email stated:

Good Morning,

I am writing to request an extension of 1 month for response to the attached Remand Scheduling Order. Our in house counsel Robert Zimmerman who was managing the matter departed the company at the end of January which has limited our ability to respond. Additionally, as the matters occurred a few years ago it is taking some time to prepare all documentation. I am currently working with outside counsel to prepare a response and expect to have that completed by the end of next week. I appreciate your consideration and look forward to your response.

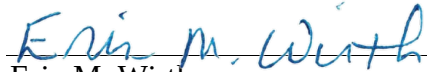
Sincerely,

Daniel Lutz
COO, Color Brands

Pro se Complainant's email will be accepted and treated as a motion requesting an extension of time. By this order, notice of the request is being provided to Respondent. To expedite the proceeding, it is also being considered. Even if Respondent intends to object to the request, Complainant has stated good cause for the requested extension which is reasonable. Therefore, the request is granted.

In addition, in the remand scheduling order, Complainant was asked to “specifically address the date(s) of its claim.” The Office of the Secretary was also asked if it had evidence regarding the date that the claim was filed and responded that their records show that the complaint was received on August 11, 2022. The parties may raise any arguments regarding this date in their briefs.

Accordingly, it is hereby **ORDERED** that Complainant’s request for an extension be **GRANTED**. Complainant shall file its brief and evidence by March 22, 2024. Respondent shall file its response by April 22, 2024. All filings should be emailed to secretary@fmc.gov, with copies to the other parties and to judges@fmc.gov.


Erin M. Wirth
Chief Administrative Law Judge